

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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STEPHON GREEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, SERGEANT EDWIN
ESPINAL, Tax No. 934831, DETECTIVE ELIJAH
AUSTIN, SEREGANT JASON FILORAMO, SERGEANT
NICHOLAS DEMEO, Tax No. 950308, and POLICE
OFFICERS JOHN DOES #s 1-10, (names and numbers of
whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
July 24, 2021

Yours, etc.

/s/
JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007,
SERGEANT EDWIN ESPINAL, Tax No. 934831, 103RD Pct., 168-02 91ST AVE, JAMAICA, NY
11432

DETECTIVE ELIJAH AUSTIN, 79th Pct. Detective Squad, 263 Tompkins Ave, Brooklyn, NY
11216

SEREGANT JASON FILORAMO, 88th Pct. Detective Squad, 298 Classon Ave, Brooklyn, NY
11205

SERGEANT NICHOLAS DEMEO, Tax No. 950308, 75th Precinct, 1000 Sutter Ave, Brooklyn, NY
11208

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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STEPHON GREEN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, SERGEANT EDWIN
ESPINAL, Tax No. 934831, DETECTIVE ELIJAH
AUSTIN, SEREGANT JASON FILORAMO, SERGEANT
NICHOLAS DEMEO, Tax No. 950308, and POLICE
OFFICERS JOHN DOES #s 1-10, (names and numbers of
whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff STEPHON GREEN, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that occurred on or about July 24, 2018 at approximately 11:00 p.m., at which time plaintiff was a lawful passenger in a vehicle driven by his friend in the vicinity of Decatur St. and Tompkins Ave, Brooklyn, New York when the individually named defendant police officers pulled the vehicle over without probable cause or legal justification, unlawfully searched plaintiff, falsely arrested/ imprisoned plaintiff, denied plaintiff the right to due process/ right to a fair trial, and maliciously prosecuted plaintiff. At no time relevant herein did the defendants recover any illegal drugs, weapons, or contraband from plaintiff, nor did they obtain any evidence to establish probable cause to arrest plaintiff. Nevertheless, the defendants transported plaintiff in handcuffs to the 79th Precinct whereat he was illegally searched and detained in a holding cell for many hours. After many hours plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued for many additional hours. The officers denied plaintiff the right to due process/ the right to a fair trial and maliciously prosecuted plaintiff when they provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence regarding their basis for arresting plaintiff and charging him with crimes and the false, misleading, and incomplete evidence provided to the DA's Office caused a criminal prosecution to be initiated against plaintiff, without probable cause. Plaintiff

was arraigned in Kings County Criminal Court on July 25, 2018, approximately 26 hours after plaintiff was falsely arrested and wrongfully charged with crimes he did not commit, based upon the false, misleading, and incomplete allegations made by the police officers to the District Attorney's Office. Plaintiff was released on his own recognizance at arraignment. Plaintiff testified in front of a Grand Jury and the Grand jury returned No True Bill. All criminal charges brought against plaintiff were dismissed and sealed in their entirety and terminated in plaintiff's favor on March 29, 2019, after the District Attorney's Office moved to dismiss the charges brought against plaintiff. The defendants who did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution and neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched his person, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ the right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff STEPHON GREEN is a resident of the state of New York.
3. Defendant SERGEANT EDWIN ESPINAL, TAX NO. 934831, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant SERGEANT EDWIN ESPINAL, TAX NO. 934831, is and was at all times relevant herein, assigned to the 103rd Precinct.
5. Defendant SERGEANT EDWIN ESPINAL, TAX NO. 934831, is being sued in his individual and official capacity.
6. Defendant DETECTIVE ELIJAH AUSTIN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant DETECTIVE ELIJAH AUSTIN, is and was at all times relevant herein, assigned to the 79th Precinct Detective Squad.
8. Defendant DETECTIVE ELIJAH AUSTIN, is being sued in his individual and official capacity.
9. Defendant SEREGANT JASON FILORAMO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Defendant SEREGANT JASON FILORAMO, is and was at all times relevant herein, assigned to the 88th Precinct Detective Squad.

11. Defendant SEREGANT JASON FILORAMO, is being sued in his individual and official capacity.

12. Defendant SERGEANT NICHOLAS DEMEO, Tax No. 950308, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant SERGEANT NICHOLAS DEMEO, Tax No. 950308, is and was at all times relevant herein, assigned to the 75th Precinct.

14. Defendant SERGEANT NICHOLAS DEMEO, Tax No. 950308, is being sued in his individual and official capacity.

15. Defendants New York City Police Officers John Does # 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Defendants Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK in compliance with the Municipal Law Section 50.

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. On July 24, 2018, at approximately 11:00 PM plaintiff was a lawful passenger in a vehicle driven by his friend in the vicinity of Decatur St. and Tompkins Ave, Brooklyn, New York when defendants pulled the vehicle over without probable cause or legal justification, unlawfully searched plaintiff, falsely arrested/ imprisoned plaintiff, denied plaintiff the right to due process/ right to a fair trial, and maliciously prosecuted plaintiff.

24. Specifically, the defendants pulled plaintiff's friend's vehicle over without probable cause or reasonable suspicion to believe he committed a crime or violated the law in any way, and defendants did not have any legal basis to pull the vehicle over.

25. Defendants falsified a basis for pulling plaintiff's friend's vehicle over, and defendants falsely alleged that they could smell alcohol emanating from the vehicle as they drove by plaintiff's friend's vehicle in their police vehicle.

26. After the defendants unlawfully stopped plaintiff's friend's vehicle without probable cause or legal justification they approached the vehicle and ordered plaintiff to exit the vehicle and stand near the rear of the vehicle.

27. The defendants unlawfully searched plaintiff without probable cause and did not recover any drugs, weapons, or contraband from plaintiff's person.

28. The defendants then told plaintiff and the driver of the vehicle that they could get back in the car and were free to leave.

29. However, when plaintiff and his friend got into the vehicle, the officers stopped plaintiff's friend from leaving and decided to search the vehicle, without any legal basis to conduct a search of the vehicle.

30. The defendants unlawfully searched the entire vehicle without probable cause, a warrant, consent, or any legal justification, including the locked trunk and glove compartment of the vehicle.

31. Plaintiff was not the owner of the vehicle and had no connection to the vehicle other than the fact that he was a passenger in the vehicle at the time the vehicle was pulled over.

32. The defendants allege that they recovered a firearm from the locked trunk of the vehicle., pursuant to defendants unlawful search of the trunk.

33. Although plaintiff never possessed the firearm allegedly recovered from the trunk of the vehicle and the defendants did not have an objective factual basis to believe plaintiff

possessed constructive possession over the firearm allegedly recovered from the trunk, defendants unlawfully handcuffed plaintiff and falsely arrested him.

34. The defendants unlawfully transported plaintiff against his will to the 79th Precinct whereat they unlawfully searched, fingerprinted, photographed, and detained plaintiff in a holding cell for many hours.

35. Plaintiff was transported to Kings County Central Booking on July 25, 2018, whereat the unlawful detention continued.

36. The defendants provided false, misleading, and incomplete evidence to the Kings County District Attorney's Office to justify their basis for arresting plaintiff and charging him with crimes.

37. The defendants fabricated allegations to the District Attorney's Office against plaintiff that they recovered marijuana from a location within the vehicle that was in plain view and that was within plaintiff's possession, custody, or control. The defendants' allegations about the marijuana were completely false.

38. The defendants fabricated allegations to the District Attorney's Office against plaintiff that defendants recovered two cups from the vehicle that smelled like alcohol and previously contained alcohol, but the alcohol had spilled from the cups. The defendants' allegations about the alcohol were completely false.

39. On July 25, 2018, approximately 26 hours after plaintiff was falsely arrested, he was arraigned in Kings County Criminal Court and wrongfully charged with crimes he did not commit and that the defendants lacked probable cause to accuse him of committing, based upon the false, misleading, and incomplete allegations communicated to the District Attorney's Office by defendants, including but not limited to criminal possession of a weapon and criminal possession of marijuana.

40. Plaintiff was released from custody on his own recognizance at arraignment.

41. Plaintiff testified in front of a Grand Jury and the Grand jury returned No True Bill.

42. All criminal charges brought against plaintiff were dismissed and sealed in their entirety and terminated in plaintiff's favor on March 29, 2019, after the District Attorney's Office moved to dismiss the charges brought against plaintiff.

43. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers have a reasonable basis to believe he violated the law or committed a crime.

44. The defendants denied plaintiff the right to due process/ the right to a fair trial and maliciously prosecuted plaintiff when they provided the Kings County District Attorney's

Office with false, misleading, and incomplete evidence regarding their basis for arresting plaintiff and charging him with crimes.

45. The false, misleading, and incomplete evidence provided to the DA's Office by defendants caused a criminal prosecution to be initiated against plaintiff, without probable cause.

46. The defendant police officers who did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights are liable to plaintiff for their failure to intervene..

47. The false arrest, false imprisonment, unlawful search, malicious prosecution, and denial of plaintiff's right to due process/ right to a fair trial by the individually named defendant officers caused plaintiff to sustain physical, economic, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The individually named police officer defendants while acting in concert and within the scope of their authority caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable search and seizure and denial of the right to due process pursuant to the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty pursuant to the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. Defendants lacked probable cause to search plaintiff.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and the United States Constitution.

65. Defendants commenced and continued a criminal proceeding against plaintiff.

66. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

67. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

68. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.\

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process/ Right to a Fair Trial

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 72 with the same force and effect as if fully set forth herein.

74. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

75. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

76. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

77. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

78. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Failure to Intervene

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

91. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

93. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff STEPHON GREEN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, costs, and reasonable attorneys' fees and inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 24, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county or state wherein I maintain my office.

DATED: New York, New York
July 24, 2021

/s/

DAVID M. HAZAN